

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE  
FOR

HOUSE BILL NO. 3240

By: Hasenbeck

COMMITTEE SUBSTITUTE

[ schools - prayer - school districts - policy -  
language - consent - prohibitions - injury -  
Attorney General - claims - liability -  
applicability - effective date ]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 11-101.1, is  
amended to read as follows:

Section 11-101.1. A. The board of education of each school  
district shall permit those students and teachers who wish to do so  
to participate in voluntary prayer. Nothing in this act shall be  
construed to permit the school curriculum to be used to teach or  
inculcate students in sectarian or religious doctrine or to be in  
conflict with Section 11-101 of Title 70 of the Oklahoma Statutes.

B. Beginning with the 2026-2027 school year, the boards of  
education of school districts and the governing bodies of charter

1 schools shall adopt a policy described by subsection C of this  
2 section requiring every public school to provide students and  
3 employees with an opportunity to participate in a period of prayer  
4 and reading of the Bible or other religious text on each school day  
5 in accordance with this section. Such period may involve  
6 opportunities for voluntary participation in individual or group  
7 activities.

8 C. A policy adopted under this subsection shall include the  
9 following statement: "It is the policy of (insert name of school  
10 district or charter school) that every campus of (insert name of  
11 district or school) shall provide a period of prayer and reading of  
12 the Bible or other religious text in accordance with state law.  
13 Such period may involve opportunities for voluntary participation in  
14 individual or group activities."

15 D. A policy adopted under subsection C of this section shall:

16 1. Prohibit a school employee or student of the school district  
17 or charter school from being permitted to participate in the period  
18 of prayer and reading of the Bible or other religious text unless  
19 the school employee on his or her own behalf or the parent or  
20 guardian of the student submits to the district or school a signed  
21 consent form that includes:

22 a. an acknowledgment that the school employee or student  
23 has a choice to participate in the period of prayer  
24 and reading of the Bible or other religious text,

- 1        b. an identification of any opportunities to engage in a  
2        period of individual or group activities of prayer and  
3        reading of the Bible or other religious text,  
4        c. a statement that the school employee on his or her own  
5        behalf or parent or guardian of the student has no  
6        objection to participating in or hearing of the  
7        prayers or readings offered during the period, and  
8        d. an express waiver of the right to bring a claim under  
9        state or federal law arising out of the adoption of a  
10       policy under this section, including a claim under the  
11       Establishment Clause of the First Amendment to the  
12       United States Constitution or a related state or  
13       federal law, releasing the district or school and  
14       district or school employees from liability for those  
15       claims brought in state or federal court;

16       2. Prohibit the provision of a prayer or reading of the Bible  
17       or other religious text over a public address system; and

18       3. Specify that a period of prayer or reading of the Bible or  
19       other religious text shall not be a substitute for instructional  
20       time.

21       E. A school employee on his or her own behalf or the parent or  
22       guardian of a student may revoke consent provided under subsection D  
23       of this section by informing the appropriate school administrator,  
24       as determined by the school district or charter school. A school

1 employee or student for whom consent has been revoked under this  
2 subsection:

3 1. Shall not participate in the period of prayer and reading of  
4 the Bible or other religious text until the school employee or  
5 parent or guardian of the student submits to the district or school  
6 a new consent form; and

7 2. Remains bound by the waiver described by subparagraph d of  
8 paragraph 1 of subsection D of this section.

9 F. 1. The policy adopted under subsection B of this section  
10 shall include provisions ensuring a prayer or reading of the Bible  
11 or other religious text is not knowingly or intentionally provided  
12 in the physical presence of, within the hearing of, or in another  
13 manner which would constitute an injury in fact within the meaning  
14 of the United States or Oklahoma Constitution on a person for whom a  
15 signed consent form has not been submitted or has been revoked.

16 2. In order to comply with this subsection, the policy adopted  
17 under subsection B of this section may allow that the period of  
18 prayer and reading of the Bible or other religious text be provided:

19 a. before normal school hours, or

20 b. only in classrooms or other areas in which a consent  
21 form has been submitted for every school employee and  
22 student, which may include an entire school district  
23 or charter school campus if a consent form has been

1           submitted for each school employee and student at the  
2           campus.

3       G. 1. The Attorney General, on request from the board of  
4 education of a school district or the governing body of a charter  
5 school, shall provide advice on best methods for a district or  
6 school to comply with the requirements of this section and shall  
7 defend the district or school in a cause of action arising out of  
8 the adoption of a policy under subsection B of this section. If the  
9 Attorney General defends a school district or open enrollment  
10 charter school under this subsection, the state is liable for the  
11 expenses, costs, judgments, or settlements of the claims arising out  
12 of the representation. The Attorney General may settle or  
13 compromise any and all claims under this subsection. The state may  
14 not be liable for any expenses, costs, judgments, or settlements of  
15 any claims against a district or school which is not represented by  
16 the Attorney General, arising out of the adoption of a policy under  
17 this section.

18       2. The Attorney General's office shall provide a model consent  
19 form that may be used for purposes of providing consent under  
20 subsection D of this section.

21       H. This section shall not prohibit a school employee or student  
22 of the district or school from participating in prayer or reading  
23 the Bible or other religious text during a period of the school day  
24

1 that is not designated as a period of prayer and reading of the  
2 Bible or other religious text.

3 SECTION 2. This act shall become effective November 1, 2026.

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